



TERMS OF SERVICE

TOP FUN CHARTERS

These Terms of Use (the "Agreement") govern your access to and use of the Services (as defined herein). Your access to and use of the Services are contingent upon your acceptance of and compliance with this Agreement. By accessing or using the Services, you agree to form a binding contract with Top Fun Charters and to adhere to the terms of this Agreement.

Top Fun Charters may modify the Agreement at its sole discretion by posting an updated version on the Top Fun Charters website. By continuing to access or use the Services after any revised Agreement becomes effective, you accept the updated Agreement; however, such changes will only apply to your use of the Services from the date of the change onward.

Definitions

- **Top Fun Charters** refers to Get Serious LLC, a Florida limited liability company, including its parents, subsidiaries, officers, directors, employees, agents, affiliates, contractors, licensors, business partners, successors, and assigns.
- **Captain** refers to the individual(s) assigned by Top Fun Charters to provide services to you, or in the case of a bare boat charter, the captain and crew you have hired.
- **Services** refer to the information and/or services provided or made available by Top Fun Charters through its website(s).
- **You** and its variants refer to the user of the Services who has accepted this Agreement.

Summary of the Services Top Fun Charters is an online platform, including mobile applications and related services, that enables users to arrange and schedule transportation, logistics, and/or delivery services, and/or to purchase captain-for-hire services, including from third-party providers under an agreement with Top Fun Charters. Your ability to obtain transportation, logistics, and/or delivery services through the Services

does not establish Top Fun Charters as a provider of these services or as a transportation carrier.

Eligibility to Use the Service You represent and warrant that: (a) you can form a binding contract with Top Fun Charters and are not barred from receiving Services under U.S. or other applicable laws; (b) if you are accepting this Agreement and using the Services on behalf of a company, organization, government, or other legal entity, you are authorized to do so; (c) you will use the Services in compliance with this Agreement and all applicable laws and regulations; (d) you are over 18 years of age or are otherwise considered an adult in your jurisdiction; and (e) if the Services involve using a vessel not owned or leased by the Captain, you own, lease, or lawfully possess a seaworthy, compliant, and properly insured vessel (a "Vessel").

If any of these representations or warranties become untrue, you are not eligible to use the Services. You are also ineligible if you have been previously suspended from using the Services and have not been explicitly authorized to resume. Top Fun Charters reserves the right to refuse service to anyone and to reject, cancel, interrupt, remove, or suspend access to the Services at any time for any reason.

Top Fun Charters may attempt to verify your identity and other information you provide. Top Fun Charters may delay, withhold, reverse, or refund any amounts without notice or liability if unable to verify information to its satisfaction.

Unless otherwise stated, the Services are directed solely to individuals, companies, or entities located in the United States.

Your License to Use the Services Top Fun Charters grants you a limited, non-exclusive, non-transferable, revocable license to use the Applications on your personal device solely in connection with your use of the Services, subject to your eligibility and compliance with this Agreement. This license is intended to enable you to use and enjoy the Services as provided by Top Fun Charters in the manner permitted by this Agreement.

The license is limited to your personal, non-commercial use of the Services. You may not use the Services for any purpose that: (a) harasses, abuses, threatens, defames, bullies, or violates the rights of others; (b) is unlawful, fraudulent, or deceptive; (c) introduces harmful software or code; (d) encourages or facilitates criminal conduct or civil liability; (e) violates this Agreement; or (f) is commercial, including conducting a charter boating business.

Additionally, you agree not to: (i) interfere with or distract the Captain while performing Services; or (ii) make or cause to be made any derogatory or detrimental comments about the Company, its Services, or its Captains.

User Responsibilities You access or use the Service at your own risk and are solely responsible for your use of the Services and the passengers on the Vessel.

If you register an account with Top Fun Charters, you are responsible for maintaining accurate, truthful, and current registration information. Your user information may be stored and analyzed by Top Fun Charters and may be accessible to anyone who knows your password. You are responsible for safeguarding your password and for any activities or actions using your account. Top Fun Charters is not liable for any loss, damage, or injury arising from your failure to secure your account and password. You agree to indemnify, defend, and hold harmless Top Fun Charters for the same. Notify Top Fun Charters immediately if you suspect unauthorized access to your account or any other security breach. Provide additional information as requested by Top Fun Charters to verify your identity.

You must provide any information requested by the U.S. Coast Guard or other agencies in the event of an investigation related to Top Fun Charters, its Services, or its Captains.

Scope of Services You understand that Top Fun Charters is not obligated to continue providing the Services and may discontinue them at any time. Any limitations are at Top Fun Charters's sole discretion and may be imposed without prior notice.

The Services may include links to third-party websites or services that are not owned or controlled by Top Fun Charters. Top Fun Charters has no control over, and assumes no responsibility for, the content, privacy policies, or practices of any third-party websites or services. Top Fun Charters does not endorse the offerings of any of these entities/individuals or their websites.

You acknowledge and agree that Top Fun Charters shall not be held responsible or liable, directly or indirectly, for any damage or loss caused or alleged to be caused by or in connection with the use of or reliance on any such third-party content, goods, or services available on or through any such third-party websites or services. Top Fun Charters strongly advises you to read the terms and conditions and privacy policies of any third-party websites or services that you visit.

Fees Fees for the Services will be charged to you at the time of booking, unless other arrangements have been made in writing and approved by Top Fun Charters. Top Fun Charters will not dispatch a Captain to you to provide Services or provide a boat until all such fees are paid by you in full.

Privacy Any information that you provide to Top Fun Charters is subject to our Privacy Policy, which may be amended or replaced from time to time, and governs our collection and use of your information. The entirety of the Privacy Policy is incorporated herein by

reference. You understand that through your use of the Services, you consent to the collection and use (as set forth in the Privacy Policy) of this information, including the transfer of this information for storage, processing, and use by Top Fun Charters.

As part of providing you the Services, Top Fun Charters may need to provide you with certain communications, such as announcements and administrative messages. These communications are considered part of the Services, and you may not be able to opt-out from receiving them. Top Fun Charters may also contact you via telephone and/or text message for marketing purposes.

You agree that Top Fun Charters may collect and use technical data and related information, including but not limited to technical information about your user device, the system, application software, and peripherals of the computing device you use to access the Services. This technical information is gathered periodically to facilitate the provision of software and firmware updates, application support, and other services to you (if any) related to the Services. Top Fun Charters may use this information, as long as it is in a form that does not personally identify you, to improve the Services or to provide services to you.

The Privacy Policy may be changed, updated, and/or amended from time to time at the sole discretion of Top Fun Charters to, for example, comply with regulatory or legal requirements and/or best business and data privacy practices. Top Fun Charters encourages you to review the Privacy Policy language carefully and check frequently for updates or changes.

Restrictions on Content and Use of the Services You may not: (i) remove any copyright, trademark, or other proprietary notices from any portion of the Services; (ii) reproduce, modify, prepare derivative works based upon, distribute, license, lease, sell, resell, transfer, publicly display, publicly perform, transmit, stream, broadcast, or otherwise exploit the Services except as expressly permitted by Top Fun Charters; (iii) decompile, reverse engineer, or disassemble the Services except as may be permitted by applicable law; (iv) link to, mirror, or frame any portion of the Services; (v) cause or launch any programs or scripts for the purpose of scraping, indexing, surveying, or otherwise data mining any portion of the Services or unduly burdening or hindering the operation and/or functionality of any aspect of the Services; or (vi) attempt to gain unauthorized access to or impair any aspect of the Services or its related systems or networks.

You agree that you will use the Services only as provided herein and in compliance with all applicable laws, rules, regulations, ordinances, or policies. Top Fun Charters reserves the right to access, read, preserve, and disclose any information Top Fun Charters reasonably believes is necessary to (i) satisfy any applicable law, regulation, legal process, or

governmental request, (ii) enforce this Agreement, including investigating potential violations hereof, (iii) detect, prevent, or otherwise address fraud, security, or technical issues, (iv) respond to user support requests, or (v) protect the rights, property, or safety of Top Fun Charters, its users, and the public.

Intellectual Property You acknowledge and agree that the Services and all intellectual property rights associated therewith, including but not limited to the goodwill associated therewith, are, and shall remain, the property of Top Fun Charters. Except as expressly stated in this Agreement, you are not granted any intellectual property rights or license thereto by implication, estoppel, or other legal theory, and all rights in and to the Services not expressly granted in this Agreement are hereby reserved and retained by Top Fun Charters.

All right, title, and interest in and to the Services are and will remain the exclusive property of Top Fun Charters. The Services are protected by copyright, trademark, and other laws of the United States, foreign countries, and certain international treaties. Nothing in the Agreement gives you a right to use the Top Fun Charters name or any Top Fun Charters trademarks, logos, slogans, domain names, and/or other distinctive brand features. Any feedback, comments, or suggestions you may provide regarding Top Fun Charters or the Services is entirely voluntary, and Top Fun Charters may use such feedback, comments, or suggestions at its sole discretion without any obligation to you.

Term and Termination The Agreement will continue to apply until terminated by you or Top Fun Charters as follows: You may end your legal agreement with Top Fun Charters at any time for any reason by deactivating your account(s) and discontinuing your use of the Services. You do not need to specifically inform Top Fun Charters when you stop using the Services.

Top Fun Charters may suspend or terminate your account(s) or cease providing you with all or part of the Services at any time for any reason, including, but not limited to, if Top Fun Charters reasonably believes: (i) you have violated this Agreement; (ii) you create risk or possible legal exposure for Top Fun Charters and/or other users; or (iii) Top Fun Charters's provision of the Services to you is no longer commercially viable. Top Fun Charters will make reasonable efforts to notify you by the email address associated with your account or the next time you attempt to access your account.

Assumption of Risk, Disclaimers, and Limitations of Liability

A. Your use of the Service is at your own risk. The Service is provided on an "AS IS" and "AS AVAILABLE" basis, without any warranties, whether express or implied, including but not limited to implied warranties of merchantability, fitness for a particular purpose, non-

infringement, or course of performance. Top Fun Charters does not guarantee that (i) the Service will operate uninterrupted, securely, or be available at any specific time or location; (ii) any errors or defects will be corrected; (iii) the Service is free from viruses or other harmful components; or (iv) the results of using the Service will meet your expectations. You acknowledge that Top Fun Charters has not conducted any investigations, inspections, or research on the qualifications or backgrounds of the Captains. You accept that allowing the Captain(s) to board the Vessel is at your own risk.

B. Receiving the Services involves known and unknown risks associated with water activities. These risks include, but are not limited to, drowning, traversing wet and slippery surfaces, physical trauma, strains, bruises, sprains, muscle tears, broken bones, sunburn, swimming in deep water, wading in shallow water, damage to or loss of real or personal property, and other serious bodily injuries, including cardiac injuries and heart attacks, permanent disability, paralysis, and death. These risks may be caused by your actions or inactions, the actions or inactions of the Captain or other passengers on the Vessel, the condition of the Vessel, or the negligence of Top Fun Charters, whether passive or active. There may be other risks not known to you or not readily foreseeable at this time. You agree to fully accept and assume all such risks and all responsibility for losses, costs, and damages you or your passengers incur as a result of receiving the Services.

C. You agree to release, waive, and forever discharge any and all claims, liabilities, losses, demands, damages, costs, expenses, lawsuits, causes of action, and judgments that you or anyone claiming through you (including, without limitation, your passengers on the Vessel) now or hereafter may have against Top Fun Charters resulting from, arising out of, or in any way connected with your receipt of the Services. This includes any claims or damages for personal injuries, including death, and/or damage to or loss of real or personal property, whether caused in whole or in part by the negligence and/or fault of Top Fun Charters, whether passive or active (excluding gross negligence or intentional torts).

D. You agree to indemnify, defend, and hold harmless Top Fun Charters from any and all claims, liabilities, losses, demands, damages, costs, expenses (including but not limited to reasonable attorneys' fees), lawsuits, causes of action, and judgments for personal injuries, including death, and damage to or loss of real or personal property, whether foreseen or unforeseen, present or future, known or unknown, resulting from, arising out of, or in any way connected with your receipt of the Services. This applies whether caused in whole or in part by the negligence and/or fault of Top Fun Charters, whether passive or active (excluding gross negligence or intentional torts).

E. To the maximum extent permitted by applicable law, Top Fun Charters shall not be liable for any indirect, incidental, special, consequential, or punitive damages, or any loss of

profits or revenues, whether incurred directly or indirectly, or any loss of data, use, goodwill, or other intangible losses resulting from your use of the Services. In no event shall the aggregate liability of Top Fun Charters exceed the amount you paid Top Fun Charters, if any, in the past twelve months for the Services giving rise to the claim. The limitations of this subsection shall apply to any theory of liability, whether based on warranty, contract, statute, tort (including negligence), or otherwise, and whether or not Top Fun Charters has been informed of the possibility of any such damage, even if a remedy set forth herein is found to have failed of its essential purpose.

General Terms

a. Dispute Resolution. You agree that any dispute between you and Top Fun Charters arising under this Agreement or in connection with your use of the Services shall be heard only in a federal or state court in the State of Florida, within the territorial jurisdiction of Manatee County. You consent to the jurisdiction and venue of such courts and waive any objection as to inconvenient forum.

b. Complete Agreement. This Agreement represents the complete agreement between you and Top Fun Charters regarding the subject matter hereof and supersedes any prior or contemporaneous agreements between you and Top Fun Charters. No other person or company will be third-party beneficiaries to this Agreement. This Agreement shall be interpreted in accordance with the laws of the State of Florida.

c. Non-Waiver. Top Fun Charters's failure to enforce any provision of this Agreement shall not be construed as a present or future waiver of such provision, nor affect the right of any party to enforce each and every provision thereafter. The express waiver by Top Fun Charters of any provision, condition, or requirement of this Agreement shall not constitute a waiver of any future obligation to comply with such provision, condition, or requirement.

d. Severability of Terms. If any provision of this Agreement is held to be invalid or unenforceable for any reason, such provision shall be reformed to the extent necessary to make it enforceable to the maximum extent permissible to reflect the intent of the parties. The remainder of this Agreement shall continue in full force and effect. If it is determined that such provision cannot be reformed, it shall be deemed severable from these terms and shall not affect the validity and enforceability of any remaining provisions.

e. To the maximum extent permitted by applicable law, Top Fun Charters shall not be liable for any indirect, incidental, special, consequential, or punitive damages, or any loss of profits or revenues, whether incurred directly or indirectly, or any loss of data, use, goodwill, or other intangible losses resulting from your use of the Services.

Under no circumstances shall the total liability of Top Fun Charters exceed the amount you have paid to Top Fun Charters, if any, in the past twelve months for the services that gave rise to the claim.

These limitations apply to any theory of liability, whether based on warranty, contract, statute, tort (including negligence), or otherwise, regardless of whether Top Fun Charters has been informed of the possibility of such damages, and even if any remedy provided herein is found to have failed its essential purpose.

If you have any questions about this Agreement, please contact us at support@topfuncharters.com.